

26STCV04067 26STCV04067

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F21%2F2026

Source SHA-256: 92438d9aff0cbb046e829f0da6d872d5c918c8a39630ccaef9eb75022e0ad01a

Case Number: 26STCV04067 Hearing Date: September 21, 2026 Dept: 512

HEARING DATE: Mon., September 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Vandesteene

v. Jaguar Land Rover NA, LLC COMPL. FILED: 02-06-26

CASE NUMBER: 26STCV04067

NOTICE: OK

PROCEEDINGS: MOTION

FOR SANCTIONS

MOVING PARTY:

Plaintiff Jordan Vandesteene

RESP. PARTY: Defendant

Jaguar Land Rover North America, LLC

MOTION FOR

SANCTIONS

(CCP § 871.26)

TENTATIVE RULING:

Plaintiff Jordan

Vandesteene's Motion for Imposition of Monetary and Evidentiary Sanctions

Against Defendant for Repeated Noncompliance with Code of Civil Procedure

section 871.26 is GRANTED as to monetary sanctions and otherwise DENIED.

Monetary

sanctions of \$2,500 is awarded in favor of Plaintiff and against defense counsel, payable to Plaintiff's counsel within 15 days.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on September 8, 2026 ☐ Late ☐ None

REPLY: Filed
on September 14, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On February 6, 2026,
Plaintiff Jordan Vandesteene ("Plaintiff") filed the instant action for
Violation of Statutory Obligations (Song-Beverly Consumer Warranty Act) against
Defendant Jaguar Land Rover North America, LLC ("Defendant") and Does 1-50.

On March 18, 2026,
Defendant filed an Answer.

On July 30, 2026,

Plaintiff filed the instant Motion for Imposition of Monetary and Evidentiary Sanctions Against Defendant for Repeated Noncompliance with Code of Civil Procedure section 871.26 (the “Motion”).

On

September 8, 2026, Defendant filed an Opposition.

On

September 14, 2026, Plaintiff filed a Reply.

II.

Legal

Standard

Code of Civil Procedure section 871.26

“only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to [Code of Civil Procedure section 871.20]” and requires, in relevant part, that, within 120 days after filing a responsive pleading, all parties have the right to conduct initial depositions of the plaintiff and defendant. (Code Civ. Proc., § 871.26, subds. (a), (c).)

Further, Code of Civil Procedure also

requires that “[w]ithin 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator.” (Code Civ. Proc., § 871.26, subd. (d).)

Code of Civil Procedure section

871.26, subdivision (j)(2) states that “[u]nless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: ... A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).”

III.

Discussion

Plaintiff seeks monetary and evidentiary sanctions on the following grounds: (1) while the parties completed mediation, Defendant failed to schedule a mediation within 90 days after the Answer was filed; (2) Plaintiff has not yet been able to depose entity Defendant's person most qualified ("PMQ").

In Opposition, Defendant contends that sanctions against Defendant are entirely unwarranted. First, Defendant states it has demonstrated good cause for the delay in the PMQ deposition because "Defendant's delay was not the result of bad faith, obstinance, or a desire to obstruct Plaintiff's case. Ultimately, some of the delay was caused due to miscommunication within JLRNA's counsel's firm which mistakenly caused JLRNA's counsel to believe that the deposition was not agreed upon. However, Defendant did not refuse to produce its PMK at all at any time. As Plaintiff's own exhibits demonstrate, Defendant was responsive to Plaintiff's inquiries regarding the deposition of JLRNA's PMK and informed Plaintiff that they were working with the PMK to provide their earliest availability to Plaintiff." (Opp., p. 6, Forgy Decl., ¶ 7.) Further, Defendant contends the request for sanctions regarding mediation is moot and factually inaccurate given that "the factual record confirms that the parties actually conducted a successful mediation session on July 14, 2026, well before the instant motion was filed on July 30, 2026." (Opp., p. 6.) The Opposition states that "[i]mposing monetary or evidentiary sanctions for a minor delay in the administrative scheduling of an event that subsequently occurred on time would serve no judicial purpose." (Opp., p. 7.) Finally, the Opposition contends evidentiary sanctions are statutorily barred because, based on the foregoing, Defendant did not repeatedly fail to comply with the governing statute. (Opp., p. 7.)

In Reply, Plaintiff states the Motion's request for sanctions is not moot given that Defendant has still failed to provide its PMQ for deposition, and the Opposition fails to provide any evidentiarily-supported good cause for the delay. (See Reply, pp. 3-4.) Further, Plaintiff states the Opposition fails to provide any explanation for Plaintiff's counsel's failure to timely schedule mediation as well. (See Reply, p. 3, Wood Decl.)

Here, the parties do not dispute that Code of Civil Procedure section 871.26 applies to the instant action.

As to mediation, the Court finds the parties do not dispute that they completed mediation within the 150-day deadline outlined in Code of Civil Procedure section 871.26, subdivision (d). The Court declines to award sanctions regarding the mediation given the mediation undisputedly occurred during the statutorily outlined window. To the extent the scheduling of the mediation involved some administrative delay, the Court does not find that Plaintiff has shown such negligible delay warrants sanctions.

As to the deposition of Defendant's PMQ, the Court finds monetary sanctions are warranted. The parties do not dispute that the deposition has not yet occurred. Defendant's vague and ambiguous reference in the opposing papers to "a miscommunication" regarding the July deposition date is not adequately explained. Further, the deadline to conduct initial depositions in this matter was July 16, 2026, and it is now September 2026. Moreover, Defendant provides evidence that Defendant's proffered deposition date to Plaintiff is for January 2027, and Plaintiff provides evidence this alternative deposition date was not offered until the instant Motion was already filed. (Opp., Forgy Decl., ¶ 11, Exh. A; Reply, Wood Decl., Exh. 1.) In light of these circumstances, the Court finds statutory sanctions of \$2,500 against defense counsel regarding the deposition of Defendant's PMQ is warranted. (See Code Civ. Proc., § 871.26, subds. (c), (j)(2).)

Given that the Court only finds one substantive instance of Defendant's noncompliance with Code of Civil Procedure section 871.26 subdivision (b), (c), or (d), the Court does not find it has grounds to impose evidentiary sanctions pursuant to Code of Civil Procedure section 871.26 subdivision (j)(4), contrary to what Plaintiff requests. (See Code Civ. Proc., § 871.26, subd. (j)(4) ["For a manufacturer's or defendant's repeated noncompliance with subdivision (b), (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so"].)

Thus, the Motion is GRANTED as to the request for monetary sanctions and otherwise DENIED.

Monetary

sanctions of \$2,500 is awarded in favor of Plaintiff and against defense counsel, payable to Plaintiff's counsel within 15 days.

IV.

Conclusion

& Order

For the foregoing reasons,

Plaintiff Jordan Vandesteene's Motion for Imposition of Monetary and Evidentiary Sanctions Against Defendant for Repeated Noncompliance with Code of Civil Procedure section 871.26 is GRANTED as to monetary sanctions and otherwise DENIED.

Monetary sanctions of \$2,500 is awarded in favor of Plaintiff and against defense counsel, payable to Plaintiff's counsel within 15 days.

Moving party is ordered to give notice.